

Court No. - 21

Case :- WRIT - C No. - 15139 of 2022

Petitioner :- Amna Khatoon

Respondent :- U.P. Power Corporation Limited And 3 Others

Counsel for Petitioner :- Anand Mohan Pandey, Krishan Mohan Pandey

Counsel for Respondent :- Madan Mohan Chaurasisa, Mahboob Ahmad

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Sri Anubhav Singh has entered appearance on behalf of respondents no.2 and 3. He prays for and is granted two weeks' time to obtain instructions and file counter affidavit.

List as fresh on 22.07.2022 showing name of Sri Anubhav Singh as counsel for respondents.

(Dr. Y.K. Srivastava, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.7.2022

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Court No. - 21

Case :- WRIT - C No. - 15139 of 2022

Petitioner :- Amna Khatoon

Respondent :- U.P. Power Corporation Limited And 3 Others

Counsel for Petitioner :- Anand Mohan Pandey, Krishan
Mohan Pandey

Counsel for Respondent :- Madan Mohan
Chaurasisa, Anubhav Singh, Mahboob Ahmad

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Counsel for the respondent prays for and is granted two weeks further time to file counter affidavit.

List as fresh on 10.08.2022.

Order Date :- 22.7.2022

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(Dr. Y.K. Srivastava, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 15139 of 2022

Petitioner :- Amna Khatoon

Respondent :- U.P. Power Corporation Limited And 3 Others

Counsel for Petitioner :- Anand Mohan Pandey, Krishan Mohan Pandey

Counsel for Respondent :- Madan Mohan Chaurasisa, Anubhav Singh, Mahboob Ahmad

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Ram Manohar Narayan Mishra, J.

Counter affidavit filed today is taken on record.

As prayed by counsel for the petitioner, a weeks' time is allowed to file rejoinder affidavit.

List as fresh on 29.8.2022.

(R.M.N. Mishra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 18.8.2022

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Court No. - 40

Case :- WRIT - C No. - 15139 of 2022

Petitioner :- Amna Khatoon

Respondent :- U.P. Power Corporation Limited And 3 Others

Counsel for Petitioner :- Anand Mohan Pandey, Krishan Mohan Pandey

Counsel for Respondent :- Madan Mohan Chaurasisa, Anubhav Singh, Mahboob Ahmad

Hon'ble Siddhartha Varma, J.

Hon'ble Vikas Budhwar, J.

Rejoinder affidavit filed today is taken on record.

This petition has been filed against an order of the Electricity Consumer Grievance Reddressal Forum, Kanpur dated 9.11.2021, by which one Rajan Singh has been given an electricity connection in the premises being House No. 41-C, Naya Kazi Kheda, Harjendra Nagar, Kanpur Nagar and a further order has been passed that a recovery be made from Amna Khatoon, who was the widow of the earlier occupant.

Learned counsel for Respondent no.2, 3 and 4 on the strength of the averments made in the counter affidavit has sought to raise preliminary objection regarding the fact that when the order under challenge has been passed under Clause 7.10 (i) of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'), then the petitioner has an alternate efficacious remedy to prefer an appeal before Ombudsman under Clause 7.10 (iv) of the Code. Learned counsel for the petitioner has made a submission at bar that he is not a party in the proceedings in the Complaint Case No. 22 of 2021, Rajan Singh Vs. Kesko and thus he does not possess any statutory right to prefer an appeal.

We have heard the learned counsel for the petitioner as well as learned counsel for the respondents and we find that in the operative portion of the order dated 9.11.2021 so passed by Electricity Consumer Grievance Reddressal Forum, certain observations have been made against the petitioner, whereby complainant being Rajan Singh son of Shankar Singh had been made admissible for the grant of electricity connection and the recovery of the outstanding dues has been directed to be made from the petitioner herein being the widow of the earlier occupant.

According to this Court, the electricity connection of the petitioner has been disconnected on account of the arrears, which is to be paid by the petitioner in terms of the order dated 9.11.2021, then obviously petitioner is an aggrieved party, and she can prefer the statutory appeal under Clause 7.10 (iv) of the Code before the designated authority being Ombudsman.

The Hon'ble Apex Court in the case of ***B.M. Agarwal Vs. Chancellor, University of Allahabad and others***, (2003) 6 SCC 500 in paragraph 10 has observed as under: -

"9. The learned counsel for Respondent 3 has questioned the locus standi of the appellant to file this appeal. On merits, he has submitted that the GO dated 18-6-1999 is based on the directions issued by the Governor of the State while the GO dated 24-2-2000 is issued by the State Government and not by the Governor and, therefore, the subsequent GO cannot validly amend the earlier GO.

10. So far as the locus standi is concerned, we cannot agree with the learned counsel for Respondent 3. The impugned observation contained in the judgment of the High Court does have an adverse bearing on otherwise eligible persons who have crossed the age of 65 years and, therefore, the appellant has justification for filing this appeal. So far as the second question is concerned, it is premature to express any final opinion on the validity of the GO dated 24-2-2000. Prima facie, in view of the provisions contained in sub-section (8) of Section 12 of the Act which speaks of the conditions of service being determined by the State Government by general or special order in that behalf, we are of the opinion that both the impugned orders i.e GOs, ought to be read together and given effect to. This observation is only prima facie and subject to the decision by the High Court or this Court in an appropriate case where the vires of the GO dated 24-2-2000 are expressly put in issue."

Applying the principles of law, so culled out in the case of **B.M. Agarwal** (*supra*), in the facts of the present case, the petitioner answers the description of a party aggrieved and thus it is always open for him to prefer appeal under Clause 7.10 (iv) of the Code before the Ombudsman.

In case the petitioner prefers an appeal under Clause 7.10 (iv) of the Code after fulfilling the necessary formalities as required under the Code before the Ombudsman, then same shall be decided within a period of one month without going into the question of limitation.

Passing of the present order may not be construed an expression that this Court has entered into the merits of the matter, as it is always open for the Ombudsman to decide the same without being influenced and obsessed with the observations made hereinabove.

With these observations, the petition stands **disposed of**.

Order Date :- 2.9.2022

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(Vikas Budhwar, J.) (Siddhartha Varma, J.)